

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Maura Roche	Team: Squad #04	CCRB Case #: 201800743	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 01/20/2018 6:15 PM	Location of Incident: Times Square subway station entrance at 7th Avenue and West 42nd Street	18 Mo. SOL 7/20/2019	Precinct: 14
Date/Time CV Reported Sun, 01/28/2018 2:14 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sun, 01/28/2018 2:14 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Christophe Roca	00461	961557	TB DT01
2. SGT Luis Rodriguez	02107	926441	TB DT01

Officer(s)	Allegation	Investigator Recommendation
A . POM Christophe Roca	Force: Police Officer Christopher Roca used physical force against § 87(2)(b)	A . Exonerated
B . SGT Luis Rodriguez	Force: Sergeant Luis Rodriguez used physical force against § 87(2)(b)	B . Exonerated
C . POM Christophe Roca	Force: Police Officer Christopher Roca used pepper spray against § 87(2)(b)	C . Exonerated
D . SGT Luis Rodriguez	Discourtesy: Sergeant Luis Rodriguez spoke discourteously to § 87(2)(b)	D . Unsubstantiated

Case Summary

On January 28, 2018, § 87(2)(b) filed this complaint with the CCRB online.

On January 20, 2018, at approximately 7 p.m. at the MTA subway station located at 7 Avenue and 42 Street in Manhattan, PO Christopher Roca and Sgt. Luis Rodriguez of Transit District 1 grabbed § 87(2)(b) by the arms and pushed him up against the wall (**Allegations A and B: Force, exonerated**). PO Roca used pepper spray against § 87(2)(b) (**Allegation C: Force, exonerated**). Sgt. Rodriguez repeatedly said “fuck” to § 87(2)(b) (**Allegations D: Discourtesy, unsubstantiated**).

§ 87(2)(b) was arrested as a result of this incident (BR 01).

MTA footage did not cover the incident location (BR 02). There is no other known video footage of the incident.

Findings and Recommendations

Allegation (A) Force: Police Officer Christopher Roca used physical force against § 87(2)(b)

Allegation (B) Force: Sergeant Luis Rodriguez used physical force against § 87(2)(b)

Allegation (C) Force: Police Officer Christopher Roca used pepper spray against § 87(2)(b)

The following facts are undisputed.

On January 20, 2018, at approximately 7 p.m., at 7 Avenue and 42 Street in Manhattan, § 87(2)(b) (BR 03, BR 04, and BR 05), who is from England and who was on vacation with his family, entered the subway system through the emergency gate without first swiping his metrocard. § 87(2)(g)

PO Roca (BR 09) saw § 87(2)(b) do this, approached § 87(2)(b) identified himself as a police officer, showed § 87(2)(b) his badge, and asked § 87(2)(b) for identification. § 87(2)(b) refused to provide identification to PO Roca. Sgt. Rodriguez (BR 10) also approached § 87(2)(b) and identified himself as a police officer. § 87(2)(b) did not believe that PO Roca and Sgt. Rodriguez were police officers. Even when PO Roca later removed his handcuffs, § 87(2)(b) felt they looked as if they were purchased in a “toy shop.” He did not realize that they were really police officers until after he was arrested.

Because § 87(2)(b) did not believe that the officers were really police, he tried to walk away from them. PO Roca and PO Rodriguez attempted to grab § 87(2)(b)'s arms to place him into handcuffs. It is undisputed that § 87(2)(b) resisted his arrest, and that PO Roca pepper sprayed him. § 87(2)(b) thought it was Sgt. Rodriguez who pepper sprayed him, but § 87(2)(g)

§ 87(2)(b) it was PO Roca).

§ 87(2)(g) § 87(2)(b) (BR 03, BR 04, and BR 05) said that as he tried to walk away, he told officers to leave him alone. PO Roca and Sgt. Rodriguez grabbed his arms and pushed him back against the wall. § 87(2)(b) tensed his body to prevent PO Roca and Sgt. Rodriguez from placing him into handcuffs. § 87(2)(b) called out for police assistance. § 87(2)(b) kept his body rigid and tried to either keep his hands at his sides or move them away from PO Roca and Sgt. Rodriguez by pulling his hands out of their grasp. § 87(2)(b) did not push the officers. When § 87(2)(b) had his back against the wall, PO Roca pepper sprayed him. § 87(2)(b) was not sure if officers said anything before deploying the pepper spray.

PO Roca and Sgt. Rodriguez then turned § 87(2)(b) around so that he was facing the wall and handcuffed him, though § 87(2)(b) was still trying to keep his body rigid.

A few moments later, approximately 14 uniformed police officers arrived, which made § 87(2)(b) realize PO Roca and Sgt. Rodriguez were in fact police; he thus stopped resisting.

PO Roca and Sgt. Rodriguez transported him to the Transit District 1 stationhouse, where EMS treated him for the pepper spray. § 87(2)(b) did not seek further treatment. § 87(2)(b) sustained a bruise to his right bicep as a result of Sgt. Rodriguez grabbing him (BR 06).

§ 87(2)(b)'s family, including his wife, § 87(2)(b) (BR 07), and children, § 87(2)(b) (BR 07) and § 87(2)(b) (BR 08), § 87(2)(g) all three of them saw § 87(2)(b) raise his hands up to shoulder level with his palms facing outward when PO Roca first approached him, but none of them was sure if § 87(2)(b) made any physical contact with PO Roca when he did this.

PO Roca (BR 09) said that after identifying himself as a police officer and presenting his badge, he explained to § 87(2)(b) the reason for the stop and asked § 87(2)(b) for his ID. § 87(2)(b) replied, "Fuck you," and did not provide it. § 87(2)(b) who was facing PO Roca, then pushed PO Roca by the shoulders with both of his hands. PO Roca took one to two steps backwards. Once § 87(2)(b) did this, PO Roca considered § 87(2)(b) to be under arrest for § 87(2)(b).

Sgt. Rodriguez approached § 87(2)(b) as soon as he saw him push PO Roca. Sgt. Rodriguez identified himself as a police officer and as PO Roca's supervisor. He showed § 87(2)(b) his badge and asked § 87(2)(b) what was wrong. § 87(2)(b) pushed Sgt. Rodriguez by the shoulders with both hands, causing Sgt. Rodriguez to take one to two steps back. PO Roca thought § 87(2)(b) was trying to push past the officers to flee the area.

PO Roca and Sgt. Rodriguez were standing between § 87(2)(b) and the stairs that lead down to the platform. There was a wall behind § 87(2)(b). PO Roca and Sgt. Rodriguez both advanced towards § 87(2)(b) to keep him against the wall, and tried to grab his arms so that they could handcuff him. § 87(2)(b) pulled his arms away, flailed his arms around his upper body, and moved his body from side to side so they could not grasp him. PO Roca was not worried for his own safety, but he was concerned for Sgt. Rodriguez because of his size relative to § 87(2)(b) who he estimated to be 6' tall, 220 pounds, with a stocky or muscular build (by contrast, Sgt. Rodriguez is 5'5" tall and 175 pounds (BR 19)). PO Roca could not recall if he or Sgt. Rodriguez gave § 87(2)(b) any verbal commands at this time.

PO Roca and Sgt. Rodriguez attempted to get hold of § 87(2)(b)'s hands for approximately one minute before PO Roca decided to use his pepper spray to overcome § 87(2)(b)'s aggression. PO Roca yelled out three times that he was about to use pepper spray and then sprayed § 87(2)(b)'s face for approximately one second. PO Roca subsequently put out a radio call for additional units.

PO Roca and Sgt. Rodriguez took hold of § 87(2)(b)'s arms and turned him to face the wall. § 87(2)(b) was still trying to pull his arms away from PO Roca and Sgt. Rodriguez. PO Roca was able to place one of § 87(2)(b)'s wrists into the handcuffs. At this point, uniformed officers arrived, § 87(2)(b) stopped resisting, and PO Roca was able to handcuff him.

§ 87(2)(g)
Sgt. Rodriguez's (BR 10) statement was § 87(2)(g) the following § 87(2)(g). In addition to identifying himself as PO Roca's supervisor and showing § 87(2)(b) his badge, Sgt. Rodriguez also showed § 87(2)(b) his NYPD ID card, which has his name, rank,

picture, and official NYPD insignia on it. When § 87(2)(b) pushed Sgt. Rodriguez, § 87(2)(b) said, “Fuck you. You’re trying to rob me. There’s no way you’re a police officer.” In addition to flailing his arms and pulling them away from Sgt. Rodriguez and PO Roca, § 87(2)(b) was also turning his shoulders from side to side and pushing against PO Roca and Sgt. Rodriguez so he could move towards the stairs. Sgt. Rodriguez repeatedly said, “Stop resisting.” Sgt. Rodriguez was trying to hold § 87(2)(b) around his waist, so he did not see PO Roca use the pepper spray.

Patrol Guide procedure 221-01 (BR 14) states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody.

According to Patrol Guide procedure 221-07 (BR 15), O.C. spray may be used to gain or maintain control of persons who are actively resisting arrest or lawful custody or exhibiting active aggression, or to prevent individuals from physically injuring themselves, members of the service, or other persons. O.C. pepper spray may be used in arrest or custodial restraint situations where physical presence and/or verbal commands have not been, or would not be, effective in overcoming physical resistance.

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. It is therefore recommended that **allegations A, B, and C** be closed as **exonerated**.

Allegation (D) Discourtesy: Sergeant Luis Rodriguez spoke discourteously to § 87(2)(b)

§ 87(2)(b) (BR 03, BR 04, and BR 05) sat in the back seat of a marked police car between PO Roca and Sgt. Rodriguez. § 87(2)(b) tried to explain to PO Roca and Sgt. Rodriguez that he had not believed that they were police officers, but PO Roca and Sgt. Rodriguez would not listen. Sgt. Rodriguez said “fuck” one to two times during this exchange, although § 87(2)(b) could not recall the specific phrasing or context in which Sgt. Rodriguez used this language.

Both Sgt. Rodriguez (BR 10) and PO Roca (BR 09) denied saying “fuck” to § 87(2)(b) or hearing any officer say this.

§ 87(2)(g)
[REDACTED]
[REDACTED] It is therefore recommended that **allegation D** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 16).
- PO Roca has been a member-of-service for one year and this is the first CCRB complaint to which he has been a subject.
- Sgt. Rodriguez has been a member of service for 17 years and has been a subject in four CCRB complaints and six allegations, none of which were substantiated. [REDACTED]

§ 87(2)(g)
[REDACTED]
[REDACTED]

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- As of April 24, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (BR 17).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: 4

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date